IN THE HIGH COURT OF KARNATAKA AT BENGALURU
WRIT PETITION (PIL) NO. 214 OF 2024
(Public Interest Litigation under Article 226 of the Constitution)

Bengaluru Citizens' Environment Forum,
a society registered under the Karnataka Societies Registration Act,
represented by its Secretary Shri Anand Rao Kulkarni,
No. 44, 8th Main, Malleswaram, Bengaluru - 560003
... Petitioner

Versus

1. State of Karnataka, through the Chief Secretary
2. Bruhat Bengaluru Mahanagara Palike, through its Commissioner
3. Karnataka State Pollution Control Board

... Respondents

PETITION IN PUBLIC INTEREST

1. That this petition is filed in public interest and not for the redressal of any personal grievance. The Petitioner has no personal interest in the subject matter of this petition and no personal gain, private motive or oblique reason in filing it.

2. That the Petitioner is a registered society working in the field of urban environmental protection since 2011 and has the locus standi to maintain this petition.

3. That untreated sewage from the Respondent No. 2's storm water drains is being discharged into the Bellandur lake, in violation of the Water (Prevention and Control of Pollution) Act, 1974 and of the right to a clean environment guaranteed under Article 21 of the Constitution of India.

4. That representations dated 11/09/2023 and 22/01/2024 made to the Respondents have evoked no response.

5. That no similar petition has been filed by the Petitioner before this Hon'ble Court or before the Hon'ble Supreme Court.

PRAYER

It is therefore prayed that this Hon'ble Court may be pleased to:
(a) direct the Respondents to forthwith stop the discharge of untreated sewage into the Bellandur lake;
(b) constitute an expert committee to monitor compliance; and
(c) pass such other orders as this Hon'ble Court deems fit in the interest of justice.

Bengaluru
Dated: 14/03/2024

Counsel for the Petitioner
Smt. Radhika Menon, Advocate